

Section 1979 came onto the books as § 1 of the Ku Klux Act of April 20, 1871. 17 Stat. 13. It was one of the means whereby Congress exercised the power vested in it by § 5 of the Fourteenth Amendment to enforce the provisions of that Amendment.³ Senator Edmunds, Chairman of the Senate Committee on the Judiciary, said concerning this section:

"The first section is one that I believe nobody objects to, as defining the rights secured by the Constitution of the United States when they are assailed by any State law or under color of any State law, and it is merely carrying out the principles of the civil rights bill,⁴ which has since become a part of the Constitution,"⁵ viz., the Fourteenth Amendment.

Its purpose is plain from the title of the legislation, "An Act to enforce the Provisions of the Fourteenth Amendment to the Constitution of the United States, and for other Purposes." 17 Stat. 13. Allegation of facts constituting a deprivation under color of state authority of a right guaranteed by the Fourteenth Amendment satisfies to that extent the requirement of R. S. § 1979. See *Douglas v. Jeannette*, 319 U. S. 157, 161-162. So far petitioners are on solid ground. For the guarantee against unreasonable searches and seizures contained in the Fourth Amendment has been made applicable to the States by reason of the Due Process Clause of the Fourteenth Amendment. *Wolf v. Colorado*, 338 U. S. 25; *Elkins v. United States*, 364 U. S. 206, 213.

II.

There can be no doubt at least since *Ex parte Virginia*, 100 U. S. 339, 346-347, that Congress has the power to

³ See Cong. Globe, 42d Cong., 1st Sess., App. 68, 80, 83-85.

⁴ Act of April 9, 1866, 14 Stat. 27.

⁵ *Supra*, note 3, 568.